THE SIKKIM MUNICIPALITIES (AMENDMENT) BILL, 2026

[BILL NO. 03 OF 2026]

A

BILL

further to amend the Sikkim Municipalities Act, 2007.

Be it enacted by the Legislature of Sikkim on the Seventy-Seventh Year of the Republic of India as follows: -

Short title, extent and commencement.

1. (1) This Act may be called the Sikkim Municipalities (Amendment) Act, 2026.

(2) It shall come into force on the date of its publication in the Official Gazette.

Amendment of Section 2.

2. In the Sikkim Municipalities Act, 2007 (hereinafter referred to as the principal Act), in section 2, after clause (26), the following new clause shall be inserted, namely: -

"(26A). "election" means the entire process to fill a seat or seats in a Municipality."

Amendment of Section 8.

3. In the principal Act, in clause (a) of Section 8, for the word "nineteen", the words "twenty-one" shall be substituted.

Amendment of Section 13.

4. In the principal Act, in Section 13, in the existing Table, against Municipal Corporation, under the heading "Maximum Number", for the figure "19" the figure "21" shall be substituted.

Repeal and savings

5. (1) The Sikkim Municipalities (Amendment) Ordinance, 2026 is hereby repealed.

(2) Notwithstanding such repeal, anything done or any action taken in exercise of the powers conferred by or under that Ordinance shall be deemed to have been done or taken in exercise of the powers conferred by or under this Act as if this Act was in force on the day on which such thing was done or such action was taken.

THE SIKKIM MUNICIPALITIES (AMENDMENT) BILL, 2026

STATEMENT OF OBJECTS AND REASONS

1. The Sikkim Municipalities Act, 2007 (Act No. 5 of 2007) was enacted to provide a comprehensive legal framework for Constitution of the Municipalities, rationalisation, and reorganisation of the existing wards within the framework of the act and for the conduct of the General municipal elections across the State. The Act was passed by the Sikkim Legislative Assembly having received the assent of the Governor on the 16th day of April, 2007.

2. In exercise of the power conferred under Section 3 and 8 of the said Act, the State Government has deemed it necessary to rationalise and reorganise the existing wards of Gangtok Municipal Corporation from the existing 19 wards to 21 wards by amending Section 8 and 13 of the principal Act and seeks to place the above Bill for consideration of the House. It will enable effective governance for the urban population residing in this corporation.

3. The above Bill seeks to achieve the above objectives.

24/3/26

MINISTER
Urban Dev. Department and
Food & Civil Supplies Department
Government of Sikkim

(BHOJ RAJ RAI)
MINISTER-IN-CHARGE
URBAN DEVELOPMENT DEPARTMENT

Gangtok
Date: 24.03.2026

FINANCIAL MEMORANDUM:

The Bill does not involve any expenditure from the Consolidated fund of the State.

MEMORANDUM REGARDING DELEGATED LEGISLATION

-NIL-

Jitendra S Raje,IAS
Commissioner -cum-Secretary
Urban Development Department
Government of Sikkim

SIKKIM

GOVERNMENT GAZETTE

EXTRAORDINARY
PUBLISHED BY AUTHORITY

Gangtok | Friday 20th March 2026 | No. 95

GOVERNMENT OF SIKKIM
LAW & PARLIAMENTARY AFFAIRS DEPARTMENT
GANGTOK

No. 11(665)LD/25/41 **Dated: 20.03.2026**

The following Ordinance promulgated by the Governor on 20th day of March, 2026, is hereby published for general information:-

THE SIKKIM MUNICIPALITIES (AMENDMENT) ORDINANCE, 2026

[ORDINANCE NO. 05 OF 2026]

AN

ORDINANCE

further to amend the Sikkim Municipalities Act, 2007 (Act No. 05 of 2007).

WHEREAS, it has been considered expedient to amend the Sikkim Municipalities Act, 2007 (Act No. 05 of 2007), *inter alia*, to increase the maximum number of wards from 19 (nineteen) to 21 (twenty-one) in the Municipal Corporation;

AND WHEREAS, the Legislative Assembly of Sikkim is not in session and the Governor is satisfied that the circumstances exists which renders it necessary for him to take immediate necessary action;

NOW THEREFORE, in exercise of powers conferred by clause (1) of Article 213 of the Constitution of India, the Governor of Sikkim is hereby pleased to promulgate the following Ordinance, namely: -

Short title, extent, and commencement.

1. (1) This Ordinance may be called the Sikkim Municipalities (Amendment) Ordinance, 2026.

(2) It shall come into force at once.

Amendment of section 2.

2. In the Sikkim Municipalities Act, 2007 (hereinafter referred to as the "Principal Act"), in section 2, after clause (26), the following new clause shall be inserted, namely: -

"(26A) "election" means the entire process to fill a seat or seats in Municipality."

Amendment of section 8.

3. In the Principal Act, in clause (a) of section 8, for the word "nineteen", the words "twenty-one" shall be substituted.

Amendment of section 13.

4. In the Principal Act, in section 13, in the existing Table, against Municipal Corporation, under the heading "Maximum Number", for the figure "19", the figure "21" shall be substituted.

Date:20.03.2026

(OM PRAKASH MATHUR)
GOVERNOR OF SIKKIM

SURAJ CHETTRI (SSJS)
L.R.-cum-SECRETARY
LAW & PARLIAMENTARY AFFAIRS DEPARTMENT
(File No. 11(665)LD/2025)